CONSEIL DE L'EUROPE

COUNCIL OF EUROPE

COUR EUROPÉENNE DES DROITS DE L'HOMME
EUROPEAN COURT OF HUMAN RIGHTS

FIFTH SECTION

DECISION

Application no. 19667/06
by Alije ZEKIR and Sezaet ZEKIR
against the former Yugoslav Republic of Macedonia

The European Court of Human Rights (Fifth Section), sitting on 2 December 2008 as a Chamber composed of:

Peer Lorenzen, *President,*
Rait Maruste,
Karel Jungwiert,
Renate Jaeger,
Mark Villiger,
Mirjana Lazarova Trajkovska,
Zdravka Kalaydjieva, *judges,*

and Claudia Westerdiek, *Section Reistrar*,

Having regard to the above application lodged on 31 March 2006,

Having regard to the formal declarations accepting a friendly settlement of the case,

Having deliberated, decides as follows:

THE FACTS

The applicants, Ms Alije Zekir and Mr Šezaet Zekir, are Macedonian nationals who were born in 1955 and 1953, respectively and live in Skopje. They were represented before the Court by Mr D. Todorovski, a lawyer practising in Skopje. The Macedonian Government ("the Government") were represented by their Agent, Mrs R. Lazareska Gerovska.

The application concerns a labour dispute in which the applicants claimed annulment of their dismissal. The proceedings in question started on 3 April 1997 and ended on 24 January 2006, when the Supreme Court's decision of 9 November 2005 was served on the applicants.

COMPLAINTS

The applicants complained under Article 6 of the Convention that their case had not been heard within a reasonable time and that judges involved had lacked the requisite impartiality.

The applicants complained also under Article 11 of the Convention that the domestic courts had wrongly decided their claim since they had been absent from work due to their participation at a properly organised strike.

THE LAW

On 10 July 2008 the Court received the following declaration from the respondent Government:

> "I, Radica Lazareska Gerovska, Agent of the Government, declare that the Government of the Republic of Macedonia offer to pay *ex gratia* the total of 3,300 euros to Ms Alije Zekir and Mr Sezaet Zekir with a view to securing a friendly settlement of the above-mentioned case pending before the European Court of Human Rights.
>
> This sum, which is to cover any non-pecuniary damage as well as costs and expenses, will be converted into Macedonian Denars at the rate applicable on the date of payment, and free of any taxes that may be applicable. It will be payable within three months from the date of notification of the decision taken by the Court pursuant to Article 37 § 1 of the European Convention on Human Rights. In the event of failure to pay this sum within the said three-month period, the Government undertake to pay simple interest on it, from expiry of that period until settlement, at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points. The payment will constitute the final resolution of the case."

On 28 May 2008 the Court received a declaration, duly signed by the applicant's representative, which read, *inter alia*, as follows:

> "I, Dimitar Todorovski, the representative, note that the Government of the former Yugoslav Republic of Macedonia are prepared to pay *ex gratia* the total of 3,300 euros to Ms Alije Zekir and Mr Sezaet Zekir with a view to securing a friendly settlement of the above-mentioned case pending before the European Court of Human Rights ... We accept the proposal and waive any further claims against the former Yugoslav Republic of Macedonia in respect of the facts giving rise to this application. We declare that this constitutes a final resolution of the case."

The Court takes note of the friendly settlement reached between the parties. It is satisfied that the settlement is based on respect for human rights as defined in the Convention and its Protocols and finds no public policy reasons to justify a continued examination of the application (Article 37 § 1 *in fine* of the Convention). In view of the above, it should be struck out of the list.

For these reasons, the Court unanimously

Decides to strike the application out of its list of cases.

Claudia Westerdiek
Registrar

Peer Lorenzen
President